



Application for an Act of Grace Payment

What is an act of grace payment?

Act of grace payments may be made when the Finance Minister or delegate considers it is appropriate to do so because of special circumstances (section 65 of the *Public Governance, Performance and Accountability Act 2013* (PGPA Act)).

Act of grace payments are discretionary. There is no guarantee of an outcome in favour of the applicant.

What are special circumstances?

Special circumstances are not defined but may apply where a decision maker is satisfied that:

- an act of a non-corporate Commonwealth entity (NCE) has caused an unintended and inequitable result to the individual or organisation seeking the payment;
- Commonwealth legislation or policy has had an unintended, anomalous, inequitable or otherwise unacceptable impact on the claimant's circumstances; or
- the matter is not covered by legislation or specific policy, but the Commonwealth Government intends to introduce such legislation or policy.

Who can apply?

Any individual, company or other organisation can apply for an act of grace payment, either for themselves or for a third party if authorised. If a company applies for an act of grace payment, this form must be completed by an individual who is authorised to make this claim on behalf of the company (eg. director).

Claims are made in writing. Face-to-face meetings are generally not conducted.

The act of grace power is available to provide a remedy for the actions of NCEs. A list of NCEs is available on the [Finance website](#).

If your claim relates to an entity other than a NCE, Finance may be limited to considering issues arising from the application of legislation or broader policy issues. If your claim does not relate to the Commonwealth Government, Finance will be unlikely to be able to assist.

What happens after you apply

The investigation of an application will be a lengthy process. If you want to find out about the progress of your application, you can contact the Discretionary Payments Section.

Generally, Finance will seek information about your application from relevant NCEs. A copy of any information provided by another NCE will ordinarily be provided



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to you for an opportunity to comment, prior to a decision being made.

Once all relevant information is available, the request will be submitted for a decision as soon as practicable. You will be notified of the decision in writing.

Privacy notice

In accordance with the *Privacy Act 1988* and the Australian Privacy Principles, the information, including personal information, provided in relation to this application will be used to assess your claim for an act of grace payment and to notify you of the outcome of your claim. In order to assess your claim Finance will share relevant information about your application with relevant Australian Government departments or agencies.

Further information on how your personal information will be handled, including how to make a complaint about the handling of your personal information, is contained in Finance's Privacy Policy. Our Privacy policy is available at:

<https://www.finance.gov.au/publications/policy/department-finance-privacy-policy>.

You can also contact Finance to obtain a copy.

For more information

Website:

<http://www.finance.gov.au/resource-management/discretionary-financial-assistance/>

Email: sfc@finance.gov.au

Freecall (except from mobiles): 1800 227 572

Where do I send this form?

Send the completed form to:

sfc@finance.gov.au

The Department of Finance is unable to access third party document storage platforms.

Please provide any documentation relating to your claim as email attachments at sfc@finance.gov.au or via post addressed to:

Discretionary Payments Team
Department of Finance
One Canberra Avenue
FORREST ACT 2603
AUSTRALIA



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Part 1 (a): Personal details

Title	Dr
McLean	Mclean
Given name(s)	Richard
Date of birth	08/04/1973

Part 1 (b): Company details

Company name	www.richmclean.com.au
Authorised officer & position	Dr Mclean

If you have completed Part 1(b) you must also complete the declaration at Part 5.

Part 2: Contact details

Postal address	2 McCubbin St, Footscray Vic 3011
Home Phone Number	
Work Phone Number	
Mobile Phone Number	0409847076
Email address	richarddrawsstuff@gmail.com



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Part 3: Application details

Which NCE (Commonwealth department or agency) does your claim relate to?

From the OPMC to my local council.

Rich Mclean has been fucked over he is a human Rights awarded artist author and well known advocate who has worked for 25 years in private and public off his own bat in altruism helping people. Now - he needs help.

Such systemic abuse from the Government occurred underpinned by Steve Iasonidis and Mr Ball amongst others, that it forced his suicide inside Weribee Mercy Hospital in feb 2021.

It was deemed fatal and he survived to have permanent injuries yet despite being owed payments detriment settlements insurance and more - he was forced to live in abject poverty for nearly two years.



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He had no advocate no lawyer he cant go to police or complain anywhere and he is a rejected whistleblower at APRA ASIC and the Commonwealth Ombudsman. The OPMC refuse his PID and FOI and undershot he has been banned at AFCA lost cases at AHRC and ComCare, rejected from Work safe, banned from all lawyers thanks to Mr Ball of ball and partners, and the police are utterly useless.

Universally exploited and systemically oppressed he was and is set up to fail in being identified vilified & victimised.

Rich has been catastrophically character assassinated, scapegoated and basically f*cked off f*cked around and f*cked over.

Not after this is published.

www.killhim.info

Have you sought review from the NCE in this matter or from another body e.g. the Ombudsman, a tribunal or a court?



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(Please tick) Yes ☒ No ☐

If you have answered no, there may be other avenues of redress available to you. You should contact the relevant entity to try to resolve the matter.

If yes, who reviewed the matter and what was the outcome?

Please attach copies of review decisions

Categorically gaslighted.

Please state why you consider your circumstances are special and why you consider a payment would be appropriate.

Please attach relevant supporting documentation.

Please note that a decision may be made on this application on the information you have provided and any other supporting documents. You may not have a further opportunity to provide documents or evidence.

Dear CDDC scheme of all government agencies, Including the SFC,
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I am not accepting the things I cannot changed am going to change what I can no ledger accept — even if you kill me (again).

Regarding your letter below referring to the act of grace payment and commonwealth detriment scheme,... I can now articulately narrative in a way that makes sense like never before.

I used to think I was very tiny that had humility and was not affecting the world:

Then later my intuition told me I was the centre something and always a unique and individualised entity that had a role. I illustrated this in 2006 and I was the centre something-and I was in comparison important to the world and the centre of my own universe and deficient awareness at least existentially.

I wish to ask for a payment that is immediate — not for millions of dollars although millions are owe but simply my firmer monthly wage paid ASAP to immediately see me out of poverty and detriment caused by Government agencies over many years.

This is while the true detriment is calculated and agreed upon. I have been framed and oppressed systemically by the Australian government and additionally by powerful political kingpins and scapegoated and tortured

And in life before I was basically murdered, I propose I will put the detriment toward supporting people in the community who are marginalised or without a voice.



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Before enlightenment chop wood carry water and so it is afterward and even after you are literally killed from a violence neglect, saved, then forsaken by humankind in favour of libel and slander

The Governmental is acting to protect Mr Steve Iasonidis, a former ASIO employee and also my fiancée of five years. He owes me a fair just and equitable settlement of assets at the end of our relationship, as is the law, and he left me homeless whilst escaping with over a million in super and after selling an Abbotsford home for 1.2 million plus shares and assets.

Centrelink and the police and the tax department and basic and para and Asia and Agis and the OPMC and OPM all know about this relationship and refuse to allow it to be acknowledged.

In addition to that, Mr Ball of Ball and partners is a lawyer who represented Dr Whitaker of whom I had a valid malpractice complaint. Mr Ball sits on the Australian Legal Bar informs Government policy and advised the ombudsman.

I have been unable to get a lawyer — ever.

I cannot go to policemen with this email and evidence. They rejected me.

I am a failed whistleblower at ASIC IBAC AFSA APRA and The Commonwealth Ombudsman.

The OPM whilst admitting there are thousands of matches of my FOI - now say that nothing exists and neither do I.



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This systemic Government oppression across all agencies state and federal either corporate non corporate has create d a situation where I was set up to fail for years.

This is victimisation although the AHRC refuse to act and themselves have oppressed me by free kicking a settlement to the opposition which was illegal and not impartial and caused me so much detriment

I have many financial complaints by AFCA refuse me because I accused them of being conspiratorial. They were.

The attorney general refused to listen how I failed at ComCare and AFCA and AHRC and The AAT and many others — which for a public official is acting outside the charter of human rights for people with a disability and again basic human rights and equality before the law.

She sent me to the SANE helpline, and refused to intervene saying thats not her role, but that is exactly her role. I specifically asked that I needed apolitical intervention and detriment paid not welfare

This abhorrent victimisation was so bad that I lost 2 x VOCAT cases and I was framed from work as an allied health professional that I adored.

I because triggered after a magistrate threw out my case saying I was 'doomed' ato failed I could not understand because of my clients sexual abuse story and how I couldn't get anyone toxin believe me.



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I think this is because Mr Ball framed me as an extortionist at AHPRA NHPOPC IBAC The Police Victorian Inspectorate and Then Ombudsman

I actually was unnecessarily hospitalised as a punishment for asking for a separation from Mr Siasonidis' lawyer and he was pivotal more than once locking me up./

I attempted suicide in whereby Mercy Hospital and it was deemed 'fatal' in the FOI but there was no redress or the works abandonment duty of care that I was sailed from a certain death.

'That was Feb 2021 and since then I have lived without enough to coexist as a vagrant. The Government first put me on job seeker and they knew I had just survived a fatal injury.

I had to beg for a DSP which I have existed on for nearly two years without enough to exist or eat.

This is despite the enormous detriment owed to me excess many issues.

I then went on to fail at AFCA and AHRC.

HCF refused my income assist and the ACCC rejected my issues and the attorney general covered it up as well as police and I had become framed as scapegoat.

Work Safe Victoria kicked my work cover case to Comcare where Paul Fowler rejected it — he was then old head at Work Safe. Then onto the AAT, where the Government who was guilty of literally killing me then covering it upon had a lawyer in Kate Watson to



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defend the government. In addition the Government have said they will sue me simply for recording evidence that this is occurring to me. That illegal in Victoria with the surveillance act 1999.

I was employed by a Victorian statutory authority only to work in Victoria so it is not a national issue but dxc the under writer reject me and blocked my number and emails.

In addition I have an outstanding claim with work safe regarding an earlier impairment from 2007 which dxc won't communicate on and work safe have blocked me from contact

Dan Andrews won't intervene, and I emailed the entirety of parliament and notion person would cross the floor to help me — even though I had literally been murdered

There was another issue as well - I had a successful TPD claim on 2007 and was aid for one unit by health super, but the product disclosure statement says two units of cover are standard — the year before I was incorrectly paid

Both dxc and ACCC covert up and of course cannot get lawyer anywhere

This would be something for AFSA but I am banned there

AGIS refuse to intervene in Ste Iasonidis and ASIO where are they? The Government don't not acknowledge the relationship including Centrelink the tax department the NDIS/A or indeed any single politician up to the attorney general (last and mark Dreyfus) and including the OPMC who reject my Public Interest Disclosure.



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I have no more time

I have no more money

I am low on hope and

I am destitute.

I have additionally been framed as a rapist because of consensual but regretful sex I had in my human rights awarded autobiography “Recovered Not cured’ and Steve is pivotal in this libel because I’ve no common friends left — my mates all exited stage left... because he knows intimately my grievances around a difficult time in my life and I am dead easy to exploit . It is no surprise that this features as a topic when thugs and co-conspirators yell abuse at my house.

Also I have been called a freak from people right outside my window... I had already fended off one violent attacker and the riot squad came. Another time I was threatened in my front yard because a man thought I was co-conspiring with his stolen car which was parked front of my rental. My computer is also bugged. You may calm delusional I don't care for your opinion on the validity of what I know to be true,,, my rubbish is emptied and things deleted, and my files suddenly lose all data in them. Important files and records such as evidence Dr Whittaker was never registered with AHPRA regarding my complaint just vanishes, or the file format is edited to become an alias or a quick time movie, that renders the file unreadable. Another thing is my iCloud is hacked and people are in out deleting photos and evidence to be before a court.



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That is because I am honest and I share and I value stories and experiences and use them to inform and educate other and I also reflect off them in self reflective manner better myself aspersion

I considerate a pro-feminist novel for its candour and educational potential I did not write it for the sole purpose of being exploited framed

If the world wants me to atone for that, I already have

If I am under arrest then arrest me! Let's hear it in court.

If not then the collective systemic government abuse clearly occurring that has caused me detriment and rendered me bereft of any prosperity whatsoever is not an adequate moral or with ethical method to treat a human being in regard to a societal judgement on my behaviour or experience I happen to make public. Its not on- and I can prove that my perceived vulnerabilities are intensely being mined and exploited... ask anyone, I'm crazy yeah? ...I am also a Dr of philosophy which requires a 100000 word dissertation that is peer reviewed by experts to prove language clarity and critical thinking.

I object to it and I object to being rejected from the finance ministering my previous gratis payment and CDDC scheme.

I wish for you to acknowledge this and pay me my former monthly wage I earned as an allied health professional, and additionally find me a new home away from persecution by police and thugs and also free from exploitation and further damage to my mind body and soul from violence of neglect.



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I would like this acknowledged immediately please

To do less is an abhorrent desecration of me, and as a suicide survivor who has once overdosed from isolation and grief and again from systemic Government persecution... any action that mimics that persecution in rendering me a vagrant or intentionally bereft of any prosperity whatsoever it simply an allegory go a death wish for me to aid and abet my death.

I must have the superpower of a deity to be able to sustain the vicious and cowardly attacks on my by powerful players always via someone else always with cowardice and always in a manner which is deceitful and not courageous or brave.

It is mr who is the brave one in this story — for having the courage to actually kill myself in that I opposed the systemic neglect and of me as an individual never being acknowledged in my capacities.

Indeed it is not me that is mad, sure there are communication issues but that stems from my quirky nature and is more of the nature of the worlds deficiencies.

Well, may people blame 'schizophrenia' or 'drugs' or look down on me because I squat. But these people are quick to slander and its the most direct route to explain away what they cannot even fathom... it is not me whois delusional or who has persecutory ideas... Thats what they want you to think... and thats how they get away with it too. Like Michael Cash refusing tp intervene as the Attorney general after I lose in her portfolios of ComCare andAHRC and AFCA and the commonwealth ombudsman also forward guessing that my work cover case will fail also under her portfolio at AAT.



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This is despite my recordings of the conspiracy catching Tim Gos out delaying deferring and denying ,y determinations which should have been made within four weeks for a financially marginalised person — thats according to their own policy!

It's about Liz Lindsberg free kicking casually a million dollar settlement to the opposition...caught right on my recording. Then they have the audacity to send me the official paperwork rejecting me within a minute or two... Why? The decision is already ,Ade!

Its about Paul Fowler knocking me back at ComCare for a legislation of the SRC act if I am an 'employee' or am I a 'worker?' It satates simply on the NDIS Commission's website a worker can be a sole trader or contractor paid or unpaid or volunteer. Additionally Paul was the old boss at work safe Victoria - the same state agency that sent me to comcare incorrectly in the first place to design my utter vagrancy ands reject myth could claim. Thats called corruption.

It's about me having aDSS online government profile as an employee and going blue in the face trying to state it simply. The gaslighting that I received from former partner and some family growing upon has a name — its the government and every public official acts outside the charter of human rights for people with a disability ratified by the government in 2008.

We need access to the law
We shall not be exploited
We shall never be discriminated against
We shall never be devalued life
Nor will we be tortured



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I've already been tortured and oppressed to death then lived as a vagrant in intelligently designed poverty.

Then remarkably — sued by the government and further the government has a lawyer to defend the slaughter and out think and trick me.

Ivory need had a lawyer, and I have got this far is a testament to my courage and critical thought my research and also my being able to sustain prolonged systemic government abuse that is the very definition of gaslighting which is a proven method of torture.

I'm then left to rot and forsaken by all fiends and family which has been a personal disaster and caused so much pain and grief it is quite unimaginable;

I know what you think... I'm mad I'm rude I don't play by the rules and a free radical who does not respect society or its values...

And you are wrong because even though people have forsaken me I love call people and I will use any detriment apart from a simple existence to support the marginalised and the voiceless

The society that has collectively shunned me is pathologically sick — because madness is rare in individuals, especially the light keeping truth speaking and seeking ones that people feel are a threat to their conceited privilege and another public official lines up to reject me ostracise me or damn me or believe the hype to desecrate me further

There is only so much one can take so please acknowledge the immense contributions I have made as opposed to the utter



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desolation that is designed for me because if this does not garner a response... I may well, without a home food love people or medicine...die

And i know not only because I have researched that the thin wedge of the end stage capitalism and Anthropocene there will be no innately 'natural' person other than post human hybrids in as little as 1000 years time — that is anywhere on the planet

I know not only because of research Burt a but a life of passion [passion with nature animals and the environment and technology but I see and acknowledge things others don't.

When the people forsaken allegorical crucified then forsaken allegory the gust is God gets angry and you will be wasted

Either way that happens — out human nature is not our authentic state of being and the world definitively is dying. But we are spirit having a human experience all at the end of humanity and anyone who is known to be 'of the light' will be rewarded in as yet unknowable ways.

Please see the narrative at www.killhim.info as well please.



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From: SFC **Sent:** Thursday, 3 February 2022 3:14 PM **To:** richarddrawsstuff@gmail.com **Subject:** MCLEAN - Response to your letter to the Finance Minister - CDDA Scheme [SEC=OFFICIAL]

SEC=OFFICIAL

Dear Dr McLean

I refer to your recent email and telephone correspondence with the Office of the Minister of Finance, Senator the Hon Simon Birmingham. As matters relating to Commonwealth-funded discretionary financial assistance are administered by the Discretionary Payments Section within the Department of Finance, the Minister has asked me to respond on his behalf.

I have reviewed the information you sent to the Finance Minister by email on 28 January, 2 February and 3 February 2022. I have also attempted to contact you via telephone on several occasions today, 3 February 2022, but was greeted by your voicemail advising you were currently taking other calls at that time. Once you have reviewed the contents of this email, should you wish to contact Finance to discuss your request for compensation, please email sfc@finance.gov.au, or call 1800 227,572. Please note the 1800 number will go directly to voicemail, but if you leave a message requesting a call back, a member of DPS will contact you in reply.

Your correspondence outlines your request for \$1.2 million as compensation from the Australian Government. You have expressed your intention to lodge a claim under the Compensation for Detriment caused by Defective Administration (CDDA) Scheme. You have provided details of several



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grievances relating to private matters, Victorian State Government matters, and Australian Government matters. I note that several of the documents you have attempted to attach are restricted to access by Finance's IT Security. I also note that several of the images that you have attached are blurry and illegible. I have therefore relied primarily on your original lodgement of 28 January 2022 to prepare this advice.

The Commonwealth has a number of discretionary mechanisms to address financial impacts of decisions of the Commonwealth that have an unintended, unfair, unreasonable or inappropriate impact. The CDDA Scheme allows non-corporate Commonwealth agencies to consider and provide compensation for inappropriate actions by that agency that has caused you a detriment. All applications under the CDDA Scheme are considered by the relevant agency involved, or the Minister of that portfolio. The Finance Minister is also empowered to make act of grace payments in relation to the actions of non-corporate Commonwealth agencies, if he considers there are special circumstances. A list of non-corporate Commonwealth entities is available on Finance's [website](#).

Having reviewed your correspondence, I note the following:

- Several of your claims relate to private matters — such as your dispute with AFCA which is a not-for-profit company, that operates independently of the Australian Government. Private matters may not be considered under either the act of grace or CDDA schemes. It is not appropriate for me to advise you on appropriate resolutions options for these matters.
- Several of your claims relate to Victorian State Government matters — such as your interactions with Victorian Police, or the Victorian health system. State Government matters may not be considered under either the act of grace or CDDA schemes. The Victorian State Government may have an equivalent scheme that you can pursue for compensation in relation to these matters. I am unable to assist you further in relation to these claims.
- Several of your claims relate to corporate Commonwealth entities, such as Comcare and the NDIA. The act of grace and CDDA schemes are not available for matters that relate to CCEs. I would encourage



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you to lodge separate complaints directly to these agencies to seek resolution of these claims.

I note that you have raised claims about two non-corporate Commonwealth entities: Services Australia (Centrelink) and ASIC.

Services Australia (Centrelink)

You advised that you unsuccessfully applied for a Disability Support Pension (DSP) through Centrelink. I also note you attached an image to an email showing your JobSeeker payments were being suspended. If you consider that Centrelink has been defective in its administration of your application for DSP, or your JobSeeker payments, you may apply for compensation under the CDDA Scheme directly to Centrelink.

Information on how to apply for compensation from Centrelink is available on Services Australia's website at this address:

<https://www.servicesaustralia.gov.au/claiming-compensation-from-us?context=26266>.

There is also advice on how to request a Review of a Decision prior to submitting a claim for compensation.

ASIC

I am unsure what your claim against ASIC relates to. However, ASIC has not been authorised by its Minister to consider applications made under the CDDA Scheme and is therefore unable to consider any application made under the CDDA Scheme. Further, ASIC's enabling legislation provides ASIC with independence from the Minister's direction in individual cases, as such the Minister is also unable to consider any applications.

Because ASIC is unable to consider claims made under the CDDA Scheme, the Department of Finance has agreed to consider these claims instead through the act the grace mechanism. If you wish to lodge a CDDA claim regarding an allegation of ASIC's defective administration, this should be lodged instead as an act of grace application. Information and application forms to lodge an act of grace application are available on the Finance



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website, and I have also attached a fact sheet and application form to this email.

Act of grace process

If you intend to lodge an act of grace application in relation to ASIC, or any other non-corporate Commonwealth entity, please complete the attached application form, and submit a clear statement of claims outlining your special circumstances and why you think an act of grace payment is appropriate.

Please note that the act of grace power is not the appropriate avenue to receive urgent financial assistance. Claims are individually assessed, and can take several months before an outcome is reached.

I hope this information has been of assistance to you, and please contact DPS if you have any further questions or enquiries.

Kind regards
Sarah

Registrar

Discretionary Payments Team
Procurement and Discretionary Payments Branch
Department of Finance
T: 1800 227 572
E: sfc@finance.gov.au
A: One Canberra Avenue, Forrest ACT 2603

SEC=OFFICIAL



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[illegible]

What is the value of the act of grace payment you are seeking?

\$2000 per week.

Part 4: Declaration for applicant

I declare that the information provided in this application, including in any attachments to this form, is true, correct and complete to the best of my knowledge. Should I become aware of any inaccuracies in the information provided I will inform the Discretionary Payments Section (sfc@finance.gov.au or 1800 227 572) as soon as practicable.

I understand that giving false or misleading information is a serious offence under the *Criminal Code Act 1995*.

Signature



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Date

17/08/2022

Part 5: Declaration for applicants on behalf of companies [complete if applicable]

I declare that I have the authority to make this application on behalf of:

Company name

Signature

Position

Date



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Part 6: Authority for Representative

Complete the following details if you would like another person or organisation to act on your behalf when dealing with Finance. The person you nominate can be anyone above the age of 18 years.

Representative's name	
Their relationship to you (e.g. father, sister, guardian, accountant, lawyer)	
Representative's organisation	
Postal address	
Home Phone Number	
Work Phone Number	
Mobile Phone Number	
Email address	

Representative's Acceptance

I declare and accept that any personal information I am given access to under this arrangement is protected under Commonwealth legislation. I agree to access, use or disclose the information only as authorised by the person to whom the information relates.

Signature of person authorising the representative

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Date

--

Signature of Representative

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Date

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